

Opinion of the Court

system's further protections: grand juries, a defendant's procedural rights during trial, and the requirement that the Government prove its case beyond a reasonable doubt, *id.*, at 22. Next, it contends that "existing principles of statutory construction and as-applied constitutional challenges" adequately address the separation of powers concerns involved in applying generally applicable criminal laws to a President. *Id.*, at 29. Finally, the Government cites certain defenses that would be available to the President in a particular prosecution, such as the public-authority defense or the advice of the Attorney General. *Id.*, at 29–30; see *Nardone v. United States*, 302 U. S. 379, 384 (1937); Tr. of Oral Arg. 107–108.

These safeguards, though important, do not alleviate the need for pretrial review. They fail to address the fact that under our system of separated powers, criminal prohibitions cannot apply to certain Presidential conduct to begin with. As we have explained, when the President acts pursuant to his exclusive constitutional powers, Congress cannot—as a structural matter—regulate such actions, and courts cannot review them. See Part II–A, *supra*. And he is at least presumptively immune from prosecution for his other official actions. See Part II–B, *supra*.

Questions about whether the President may be held liable for particular actions, consistent with the separation of powers, must be addressed at the outset of a proceeding. Even if the President were ultimately not found liable for certain official actions, the possibility of an extended proceeding alone may render him "unduly cautious in the discharge of his official duties." *Fitzgerald*, 457 U. S., at 752, n. 32. Vulnerability "to the burden of a trial and to the inevitable danger of its outcome, would dampen the ardor of all but the most resolute." *Id.*, at 752–753, n. 32 (quoting *Gregoire v. Biddle*, 177 F. 2d 579, 581 (CA2 1949) (L. Hand, C. J.)). The Constitution does not tolerate such impediments to "the ef-